

EUROPEAN COURT OF HUMAN RIGHTS
COUR EUROPÉENNE DES DROITS DE L'HOMME

SECOND SECTION

CASE OF SHARASHKIN AND OTHERS v. RUSSIA

(Applications nos. 57223/19 and 21 others –
see appended list)

JUDGMENT

STRASBOURG

11 May 2023

This judgment is final but it may be subject to editorial revision.



In the case of Sharashkin and Others v. Russia,

The European Court of Human Rights (Second Section), sitting as a Committee composed of:

Lorraine Schembri Orland*, President*,
Frédéric Krenc,
Davor Derenčinović*, judges*,
and Viktoriya Maradudina, *Acting Deputy Section Registrar,*

Having deliberated in private on 13 April 2023,

Delivers the following judgment, which was adopted on that date:

PROCEDURE

1. The case originated in applications against Russia lodged with the Court under Article 34 of the Convention for the Protection of Human Rights and Fundamental Freedoms ("the Convention") on the various dates indicated in the appended table.

2. The Russian Government ("the Government") were given notice of the applications.

THE FACTS

3. The list of applicants and the relevant details of the applications are set out in the appended table.

4. The applicants complained of the disproportionate measures taken against them as organisers and participants of public assemblies. They also raised other complaints under the provisions of the Convention.

THE LAW

I. JOINDER OF THE APPLICATIONS

5. Having regard to the similar subject matter of the applications, the Court finds it appropriate to examine them jointly in a single judgment.

II. JURISDICTION

6. The Court observes that the facts giving rise to the alleged violations of the Convention occurred prior to 16 September 2022, the date on which the Russian Federation ceased to be a party to the Convention. The Court therefore decides that it has jurisdiction to examine the present applications (see *Fedotova and Others v. Russia* [GC], nos. 40792/10 and 2 others, §§ 68-73, 17 January 2023).

III. ALLEGED VIOLATION OF ARTICLE 11 OF THE CONVENTION

7. The applicants complained principally of disproportionate measures taken against them as organisers and participants of public assemblies, namely the dispersal of these assemblies, as well as their arrest followed by their conviction for administrative offence. They relied, expressly or in substance, on Article 11 of the Convention. Some applicants also invoked Article 10; however, those complaints fall to be examined under Article 11 of the Convention.

8. The Court refers to the principles established in its case-law regarding freedom of assembly (see *Kudrevičius and Others v. Lithuania* [GC], no. 37553/05, ECHR 2015, with further references) and proportionality of interference with it (see *Oya Ataman v. Turkey*, no. 74552/01, ECHR 2006-XIV, and *Hyde Park and Others v. Moldova*, no. 33482/06, 31 March 2009).

9. In the leading cases of *Frumkin v. Russia,* no. 74568/12, ECHR 2016 (extracts); *Navalnyy and Yashin v. Russia,* no. 76204/11, 4 December 2014; and *Kasparov and Others v. Russia,* no. 21613/07, 3 October 2013, the Court already found a violation in respect of issues similar to those in the present case.

10. Having examined all the material submitted to it, the Court has not found any fact or argument capable of persuading it to reach a different conclusion as to the admissibility and merits of these complaints. Having regard to its case-law on the subject, the Court considers that in the instant case the interferences with the applicants' freedom of assembly were not "necessary in a democratic society".

11. These complaints are therefore admissible and disclose a breach of Article 11 of the Convention.

IV. OTHER ALLEGED VIOLATIONS UNDER WELL-ESTABLISHED CASE-LAW

12. The applicants submitted other complaints which also raised issues under the Convention, given the relevant well-established case-law of the Court (see appended table). These complaints are not manifestly ill-founded within the meaning of Article 35 § 3 (a) of the Convention, nor are they inadmissible on any other ground. Accordingly, they must be declared admissible. Having examined all the material before it, the Court concludes that they also disclose violations of the Convention in the light of its well-established case-law (see *Butkevich v. Russia*, no. 5865/07, §§ 63-65, 13 February 2018; *Kalyapin v. Russia*, no. 6095/09, § 76, 23 July 2019; and *Korneyeva v. Russia*, no. 72051/17, §§ 34-36, 8 October 2019, concerning various aspects of unlawful deprivation of liberty of the organisers or participants of public events; and *Karelin v. Russia*, no. 926/08, 20 September

2016, concerning examination of criminal cases in the absence of a prosecuting party in the judicial proceedings governed by the Federal Code of Administrative Offences (CAO)).

V. REMAINING COMPLAINTS

13. Some applicants further raised additional complaints under Articles 5 and 6 of the Convention concerning other aspects of their detention and fairness of the administrative-offence proceedings. In view of the findings in paragraphs 11 and 12 above, the Court considers that there is no need to deal separately with these remaining complaints.

14. Lastly, in applications nos. 57223/19, 6752/20, 10914/20 and 24997/20, the applicants also raised other complaints under various Convention provisions.

15. The Court has examined these complaints and considers that, in the light of all the material in its possession and in so far as the matters complained of are within its competence, these complaints either do not meet the admissibility criteria set out in Articles 34 and 35 of the Convention or do not disclose any appearance of a violation of the rights and freedoms enshrined in the Convention or the Protocols thereto. It follows that this part of the applications must be rejected in accordance with Article 35 § 4 of the Convention.

VI. APPLICATION OF ARTICLE 41 OF THE CONVENTION

16. Article 41 of the Convention provides:

> "If the Court finds that there has been a violation of the Convention or the Protocols thereto, and if the internal law of the High Contracting Party concerned allows only partial reparation to be made, the Court shall, if necessary, afford just satisfaction to the injured party."

17. Regard being had to the documents in its possession and to its case-law (see *Navalnyy and Others v. Russia* [Committee], nos. 25809/17 and 14 others, 4 October 2022), the Court finds it reasonable to award the sums indicated in the appended table.

FOR THESE REASONS, THE COURT, UNANIMOUSLY,

1. *Decides* to join the applications;

2. *Holds* that it has jurisdiction to deal with these applications as they relate to facts that took place before 16 September 2022;

3. *Declares* the complaints concerning the dispersal of the public assembly and the other complaints under the well-established case-law of the Court,

as set out in the appended table, admissible, *decides* that there is no need to examine other complaints raised by the applicants under Articles 5 and 6 of the Convention about other aspects of their detention and the fairness of the administrative-offence proceedings, and *declares* the remainder of applications nos. 57223/19, 6752/20, 10914/20 and 24997/20 inadmissible;

4. *Holds* that these complaints disclose a breach of Article 11 of the Convention;

5. *Holds* that there has been a violation of the Convention as regards the other complaints raised under the well-established case-law of the Court (see appended table);

6. *Holds*
   (a) that the respondent State is to pay the applicants, within three months, the amounts indicated in the appended table, to be converted into the currency of the respondent State at the rate applicable at the date of settlement;
   (b) that from the expiry of the above-mentioned three months until settlement simple interest shall be payable on the above amounts at a rate equal to the marginal lending rate of the European Central Bank during the default period plus three percentage points.

Done in English, and notified in writing on 11 May 2023, pursuant to Rule 77 §§ 2 and 3 of the Rules of Court.

Viktoriya Maradudina	Lorraine Schembri Orland
Acting Deputy Registrar	President

APPENDIX

List of applications raising complaints under Article 11 of the Convention
(disproportionate measures against organisers and participants of public assemblies)

No.	Application no. Date of introduction	Applicant's name Year of birth	Representative's name and location	Name of the public event Location Date	Administrative charges	Penalty	Final domestic decision Court Name Date	Other complaints under well-established case-law	Amount awarded for pecuniary and non-pecuniary damage, and costs and expenses per applicant (in euros)[1]
1.	57223/19 23/10/2019	**Yevgeniy Vladimirovich SHARASHKIN** 1993	Zboroshenko Nikolay Sergeyevich Mytishchi	Manifestation for fair elections to Mosgorduma Moscow 27/07/2019	Article 20.2 § 6.1 of CAO	7 days of administrative arrest	Moscow City Court 01/08/2019	Art. 5 (1) - unlawful deprivation of liberty - arrest and escorting to a police station, detention there between 27/07/2019 and 29/07/2019 for the purposes of "putting end to an offence" and "drawing up a record of administrative offence" (such record complied on 28/07/2019): no evidence/assessment of any "exceptional circumstance"" under the CAO, Art. 6 (1) - lack of impartiality of the tribunal in view of the absence of a prosecuting party in administrative-offence proceedings	5,000
2.	58888/19 29/10/2019	**Anara Bolatovna SIYEZBAYEVA** 1999	Pomazuyev Aleksandr Yevgenyevich Vilnius	Manifestation for fair elections to Mosgorduma Moscow 27/07/2019	Article 20.2 § 5 of CAO	fine of RUB 20,000	Moscow City Court 20/08/2019	Art. 6 (1) - lack of impartiality of the tribunal in view of the absence of a prosecuting party in administrative-offence proceedings	3,500

No.	Application no. Date of introduction	Applicant's name Year of birth	Representative's name and location	Name of the public event Location Date	Administrative charges	Penalty	Final domestic decision Court Name Date	Other complaints under well-established case-law	Amount awarded for pecuniary and non-pecuniary damage, and costs and expenses per applicant (in euros)[1]
3.	63212/19 29/11/2019	**Nikita Igorevich SERGIEVSKIY** 1986	Pomazuyev Aleksandr Yevgenyevich Vilnius	Manifestation for fair elections to Mosgorduma Moscow 27/07/2019	Article 20.2 § 5 of CAO	fine of RUB 15,000	Moscow City Court 30/08/2019	Art. 5 (1) - unlawful deprivation of liberty - arrest and escorting to a police office, detention on 27/07/2019 for the purpose of drawing up a record of administrative offence, Art. 6 (1) - lack of impartiality of the tribunal in view of the absence of a prosecuting party in administrative-offence proceedings	4,000
4.	63856/19 03/12/2019	**Maksim Fandasovich KAMALEYEV** 1995	Pomazuyev Aleksandr Yevgenyevich Vilnius	Manifestation for fair elections to Mosgorduma Moscow 27/07/2019	Article 20.2 § 5 of CAO	fine of RUB 15,000	Moscow City Court 30/08/2019	Art. 5 (1) - unlawful deprivation of liberty - arrest and escorting to a police station, detention on 27/07/2019 for the sole purpose of drawing up a record of administrative offence, Art. 6 (1) - lack of impartiality of the tribunal in view of the absence of a prosecuting party in administrative-offence proceedings	4,000

No.	Application no. Date of introduction	Applicant's name Year of birth	Representative's name and location	Name of the public event Location Date	Administrative charges	Penalty	Final domestic decision Court Name Date	Other complaints under well-established case-law	Amount awarded for pecuniary and non-pecuniary damage, and costs and expenses per applicant (in euros)[1]
5.	64234/19 02/12/2019	**Igor Tagirovich AFLATUNOV** 1975	Pomazuyev Aleksandr Yevgenyevich Vilnius	Manifestation for fair elections to Mosgorduma Moscow 27/07/2019	Article 20.2 § 6.1 of CAO	fine of RUB 20,000	Moscow City Court 04/09/2019	Art. 5 (1) - unlawful deprivation of liberty - arrest and escorting to a police station, detention between 27/07/2019 to 29/07/2019 for the sole purpose of drawing up a record of administrative offence (such record compiled on 28/07/2019): no evidence/assessment of any "exceptional circumstances" under the CAO	4,000
6.	65069/19 18/12/2019	**Maksim Grigoryevich ZAVARZIN** 1975	Lawyers of former Memorial Human Rights Centre Moscow	Manifestation for fair elections to Mosgorduma Moscow 27/07/2019	Article 20.2 § 5 of CAO	fine of RUB 10,000	Moscow City Court 22/08/2019	Art. 5 (1) - unlawful deprivation of liberty - arrest, escorting to a police station, detention on 27/07/2019 in excess of three hours, for the sole purpose of drawing up a record of administrative offence, Art. 6 (1) - lack of impartiality of the tribunal in view of the absence of a prosecuting party in administrative-offence proceedings	4,000
7.	6752/20 23/01/2020	**Georgiy Aleksandrovich BURKHANOV** 2000	Lawyers of former Memorial Human Rights Centre Moscow	Manifestation for fair elections to Mosgorduma Moscow	Article 20.2 § 6.1 of CAO	fine of RUB 10,000	Moscow City Court 30/08/2019	Art. 5 (1) - unlawful deprivation of liberty - (i) arrest, escorting to a police station, detention between 27/07/2019 and at least 28/07/2019 (as confirmed by documents and as raised on appeal) as administrative suspect: no	4,000

No.	Application no. Date of introduction	Applicant's name Year of birth	Representative's name and location	Name of the public event Location Date	Administrative charges	Penalty	Final domestic decision Court Name Date	Other complaints under well-established case-law	Amount awarded for pecuniary and non-pecuniary damage, and costs and expenses per applicant (in euros)[1]
				27/07/2019 Manifestation in support of A. Navalnyy Moscow 02/02/2021	Article 20.2 § 5 of CAO	fine of RUB 10,000	Moscow City Court 20/04/2021	evidence/assessment of any "exceptional circumstances" under the CAO; *and* (ii) arrest, escorting to a police station, detention on 02/02/2021 in excess of three hours for the sole purpose of drawing up a record of administrative offence, Art. 6 (1) - lack of impartiality of the tribunal in view of the absence of a prosecuting party in administrative-offence proceedings	
8.	7758/20 23/01/2020	**Miroslav Aleksandrovich BORISOV** 1997	Pomazuyev Aleksandr Yevgenyevich Vilnius	Manifestation for fair elections to Mosgorduma Moscow 27/07/2019	Article 20.2 § 5 of CAO	fine of RUB 20,000	Moscow City Court 16/08/2019	Art. 5 (1) - unlawful deprivation of liberty - arrest, escorting to a police station, detention on 27/07/2019 in excess of three hours for the sole purpose of drawing up a record of administrative offence, Art. 6 (1) - lack of impartiality of the tribunal in view of the absence of a prosecuting party in administrative-offence proceedings	4,000
9.	8338/20 03/02/2020	**Konstantin Dmitriyevich SECHENIN** 1993	Lawyers of former Memorial Human Rights Centre Moscow	Manifestation for fair elections to Mosgorduma Moscow 27/07/2019	Article 20.2 § 6.1 of CAO	fine of RUB 10,000	Moscow City Court 04/10/2019	Art. 5 (1) - unlawful deprivation of liberty - arrest and escorting to a police station, detention between 27/07/2019 and 29/07/2019 as administrative suspect (after the record of administrative offence had been compiled on 27/07/2019): no evidence/assessment of any exceptional circumstances under the CAO,	4,000

No.	Application no. Date of introduction	Applicant's name Year of birth	Representative's name and location	Name of the public event Location Date	Administrative charges	Penalty	Final domestic decision Court Name Date	Other complaints under well-established case-law	Amount awarded for pecuniary and non-pecuniary damage, and costs and expenses per applicant (in euros)[1]
								Art. 6 (1) - lack of impartiality of the tribunal in view of the absence of a prosecuting party in administrative-offence proceedings	
10.	8543/20 28/01/2020	**Aleksandr Yuryevich SOLOVYEV** 1987	Borisova Alena Sergeyevna Moscow	Manifestation for fair elections to Mosgorduma Moscow 27/07/2019 Manifestation against political repressions Moscow 31/08/2019	Article 20.2 § 2 of CAO Article 20.2 § 8 of CAO	8-day administrative detention 20-day administrative detention	Moscow City Court 01/08/2019 Moscow City Court 11/09/2019	Art. 5 (1) - unlawful deprivation of liberty - arrest and escorting to a police station, detention (i) between 27/07/2019 and 29/07/2019 for drawing up a record of administrative offence (such record compiled already on 27/07/2019); and (ii) between 6.20 p.m. on 03/09/2019 and 4 p.m. on 04/09/2019 for drawing up an administrative offence record and "prevention of an administrative offence" (administrative-offence record in respect of the public event of 31/08/2019 compiled on 03/09/2019): no evidence/assessment of any "exceptional circumstances" under the CAO, Art. 6 (1) - lack of impartiality of the tribunal in view of the absence of a prosecuting party in administrative-offence proceedings	6,000
11.	8650/20 03/02/2020	**Vladimir Valeryevich KRAVCHENKO** 1986	Peredruk Aleksandr Dmitriyevich St Petersburg	Manifestation in support of I. Golunov Moscow	Article 20.2 § 6.1 of CAO	fine of RUB 10,000	Moscow City Court 16/10/2019	Art. 5 (1) - unlawful deprivation of liberty - arrest, escorting to a police station, detention (i) on 12/06/2019, in excess of three hours, for the sole purpose of drawing up a record of	4,000

No.	Application no. Date of introduction	Applicant's name Year of birth	Representative's name and location	Name of the public event Location Date	Administrative charges	Penalty	Final domestic decision Court Name Date	Other complaints under well-established case-law	Amount awarded for pecuniary and non-pecuniary damage, and costs and expenses per applicant (in euros)[1]
				12/06/2019 Manifestation for fair elections to Mosgorduma Moscow 27/07/2019	Article 20.2 § 6.1 of CAO	fine of RUB 12,000	Moscow City Court 04/09/2019	administrative offence; *and* (ii) between 27/07/2019 and 29/07/2019, for the same purpose (the administrative offence record was compiled already on 27/07/2019), Art. 6 (1) - lack of impartiality of tribunal - absence of a prosecuting party in both sets of administrative offence proceedings (final judgments issued on 04/09/2019 and 16/10/2019 respectively)	
12.	9267/20 03/02/2020	**Matvey Aleksandrovich ZASLAVSKIY** 1980	Lawyers of former Memorial Human Rights Centre Moscow	Manifestation for fair elections to Mosgorduma Moscow 27/07/2019	Article 20.2 § 5 of CAO	fine of RUB 10,000	Moscow City Court 04/09/2019	Art. 5 (1) - unlawful deprivation of liberty - arrest, escorting to a police station and detention on 27/07/2019 in excess of three hours for the sole purpose of drawing a record of administrative offence, Art. 6 (1) - lack of impartiality of the tribunal in view of the absence of a prosecuting party in administrative-offence proceedings	4,000
13.	10914/20 15/02/2020	**Aleksey Olegovich GOLOVENKO** 1987	Markin Konstantin Aleksandrovich Velikiy Novgorod	Manifestation for fair elections to Mosgorduma Moscow 27/07/2019	Article 20.2 § 6.1 of CAO	fine of RUB 15,000	Moscow City Court 16/08/2019	Art. 5 (1) - unlawful deprivation of liberty - arrest, escorting to a police station and detention (i) between 27/07/2019 and 29/07/2019 for the sole purpose of drawing up a record of administrative offence and (ii) between 02/02/2021and 03/02/2021 for the sole purpose of drawing up a record of administrative	4,000

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				Manifestation in support of A. Navalnyy Moscow 02/02/2021	Article 20.2 § 6.1 of CAO	fine of RUB 10,000	Moscow City Court 21/09/2021	offence – no evidence/assessment of any "exceptional circumstances" under the CAO, Art. 6 (1) - lack of impartiality of the tribunal in view of the absence of a prosecuting party in administrative-offence proceedings - both sets of administrative-offence proceedings (final judgment issued on 16/08/2019 and 21/09/2021)	
14.	12890/20 27/02/2020 and 28755/20 18/03/2020	**Boris Antonovich POSPELOV** 1999	Sirotina Anastasiya Nikolayevna Moscow	Manifestation for fair elections to Mosgorduma Moscow 03/08/2019 Manifestation for fair elections to Mosgorduma Moscow 27/07/2019	Article 20.2 § 6.1 of CAO Article 20.2 § 5 of CAO	fine of RUB 20,000 fine of RUB 10,000	Moscow City Court 04/09/2019 Moscow City Court 20/09/2019	Art. 6 (1) - lack of impartiality of the tribunal in view of the absence of a prosecuting party in administrative-offence proceedings (first set of the proceedings, final judgment of 04/09/2019)	3,500
15.	13793/20 02/03/2020	**Aleksandr Aleksandrovich TEKIN** 1993	Pomazuyev Aleksandr Yevgenyevich Vilnius	Manifestation for fair elections to Mosgorduma Moscow	Article 20.2 § 5 of CAO	fine of RUB 18,000	Moscow City Court 12/09/2019	Art. 5 (1) - unlawful deprivation of liberty - arrest, escorting to a police station and detention on 27/07/2019 for the sole purpose of drawing up a record of administrative offence,	4,000

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				27/07/2019				Art. 6 (1) - lack of impartiality of the tribunal in view of the absence of a prosecuting party in administrative-offence proceedings	
16.	14071/20 17/07/2017	**Yevgeniy Yevgenyevich TAMKOVICH** 1990	Pomazuyev Aleksandr Yevgenyevich Vilnius	Anticorruption manifestation Moscow 26/03/2017	Article 20.2 § 5 of CAO	fine of RUB 20,000	Moscow City Court 25/05/2017	Art. 5 (1) - unlawful deprivation of liberty - arrest, escorting to a police station and detention (i) on 26/03/2017, (ii) on 27/07/2019, in excess of three hours, and (iii) on 03/08/2019 - in all of the three episodes, for the sole purpose of drawing up a record of administrative offence, Art. 6 (1) - lack of impartiality of the tribunal in view of the absence of a prosecuting party in administrative-offence proceedings	4,000
				Manifestation for fair elections to Mosgorduma Moscow 27/07/2019	Article 20.2 § 5 of CAO	fine of RUB 10,000	Moscow City Court 24/09/2019		
				Manifestation for fair elections to Mosgorduma Moscow 03/08/2019	Article 20.2 § 5 of CAO	fine of RUB 15,000	Moscow City Court 26/09/2019		

No.	Application no. Date of introduction	Applicant's name Year of birth	Representative's name and location	Name of the public event Location Date	Administrative charges	Penalty	Final domestic decision Court Name Date	Other complaints under well-established case-law	Amount awarded for pecuniary and non-pecuniary damage, and costs and expenses per applicant (in euros)[1]
17.	14344/20 05/03/2020	**Ilya Yuryevich SAGITOV** 1999	Pomazuyev Aleksandr Yevgenyevich Vilnius	Manifestation for fair elections to Mosgorduma Moscow 27/07/2019	Article 20.2 § 5 of CAO	fine of RUB 10,000	Moscow City Court 02/10/2019	Art. 5 (1) - unlawful deprivation of liberty - arrest, escorting to a police station, detention on 27/07/2019 for the sole purpose of drawing up a record of administrative offence	4,000
18.	14650/20 29/02/2020 and 24997/20 27/02/2020	**Denis Igorevich MEGDALSKIY** 1994		Manifestation for fair elections to Mosgorduma Moscow 27/07/2019	Article 20.2 § 6.1 of CAO	fine of RUB 10,000	Moscow City Court 30/08/2019	Art. 5 (1) - unlawful deprivation of liberty - arrest, escorting to a police station, detention between 27/07/2019 and 29/07/2019 for the sole purpose of compiling a record of administrative offence (such record compiled on 28/07/2019); no evidence/assessment of any "exceptional circumstances" under the CAO, Art. 6 (1) - lack of impartiality of the tribunal in view of the absence of a prosecuting party in administrative-offence proceedings	4,000
19.	14740/20 11/03/2020	**Kirill Nikolayevich KHAZOV** 1998	Pomazuyev Aleksandr Yevgenyevich Vilnius	Manifestation for fair elections to Mosgorduma Moscow 27/07/2019	Article 20.2 § 5 of CAO	fine of RUB 15,000	Moscow City Court 04/10/2019	Art. 5 (1) - unlawful deprivation of liberty - arrest, escorting to a police station, detention on 27/07/2019 for the sole purpose of drawing up a record of administrative offence, Art. 6 (1) - lack of impartiality of the tribunal in view of the absence of a prosecuting party in administrative-offence proceedings	4,000

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20.	14797/20 11/03/2020	**Danil Aleksandrovich SHUSHARIN** 2000	Pomazuyev Aleksandr Yevgenyevich Vilnius	Manifestation for fair elections to Mosgorduma Moscow 27/07/2019	Article 20.2 § 5 of CAO	fine of RUB 12,000	Moscow City Court 02/10/2019	Art. 5 (1) - unlawful deprivation of liberty - arrest and escorting to a police office, detention on 27/07/2019, in excess of three hours, for the sole purpose of drawing up a record of administrative offence (such record only compiled on 31/07/2019), Art. 6 (1) - lack of impartiality of the tribunal in view of the absence of a prosecuting party in administrative-offence proceedings	4,000

[1] Plus any tax that may be chargeable to the applicants.